

SENATE No. 712

The Commonwealth of Massachusetts

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to ensuring treatment for genetic craniofacial conditions.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Julian Cyr</i>	<i>Cape and Islands</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/28/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>1/28/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>2/5/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>2/5/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/7/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/12/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/21/2025</i>

SENATE No. 712

By Mr. Cyr, a petition (accompanied by bill, Senate, No. 712) of Julian Cyr, Joanne M. Comerford, Adam Gomez, Dylan A. Fernandes and other members of the General Court for legislation relative to ensuring treatment for genetic craniofacial conditions. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 615 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to ensuring treatment for genetic craniofacial conditions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 17S the following section:-

3 Section 17T. Any coverage offered by the commission to an active or retired employee of
4 the commonwealth insured under the group insurance commission shall provide coverage for
5 medically necessary functional repair or restoration of craniofacial disorders, with the exception
6 of coverage for cleft lip and cleft palate which is prescribed under section 17J , to improve the
7 function of, or to approximate the normal appearance of any abnormal structures caused by
8 congenital disease or anomaly. Coverage under this section shall include the necessary care and
9 treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta.
10 Coverage under this section shall not include cosmetic surgery or for dental or orthodontic

11 treatment unrelated to said congenital disease or anomaly. The benefits in this section shall not
12 be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any
13 other benefit provided by the commission.

14 SECTION 2. Chapter 118E of the General Laws is hereby amended by inserting after
15 section 10Q the following section:-

16 Section 10R. The division shall provide coverage for medically necessary functional
17 repair or restoration of craniofacial disorders; with the exception of coverage for cleft lip and
18 cleft palate which is prescribed pursuant to section 10G, to improve the function of, or to
19 approximate the normal appearance of any abnormal structures caused by congenital disease or
20 anomaly. Coverage under this section shall include the necessary care and treatment of
21 ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta. Coverage under
22 this section shall not include cosmetic surgery or for dental or orthodontic treatment unrelated to
23 said congenital disease or anomaly. The benefits in this section shall not be subject to any greater
24 deductible, coinsurance, copayments or out-of-pocket limits than any other benefit provided by
25 the division.

26 SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting after
27 section 47UU the following section:-

28 Section 47VV. Any blanket or general policy of insurance under section 110 that
29 provides hospital expense and surgical expense insurance and which is delivered, issued or
30 subsequently renewed by agreement between the insurer and the policyholder in or outside of the
31 commonwealth and any employees' health and welfare fund that provides hospital expense and
32 surgical expense benefits and which is delivered, issued or renewed to any person or group of

persons in the commonwealth shall provide coverage for medically necessary functional repair or restoration of craniofacial disorders; with the exception of coverage for cleft lip and cleft palate which is prescribed under section 47BB, to improve the function of, or to approximate the normal appearance of any abnormal structures caused by congenital disease or anomaly. Coverage under this section shall include the necessary care and treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta. Coverage under this section shall not include cosmetic surgery or dental or orthodontic treatment unrelated to said congenital disease or anomaly. The benefits in this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any other benefit provided by the insurer.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after section 8VV, the following section:-

Section 8WW. Any contract between a subscriber and the corporation under an individual or group hospital service plan which is delivered, issued or renewed within the commonwealth shall provide coverage for medically necessary functional repair or restoration of craniofacial disorders; with the exception of coverage for cleft lip and cleft palate which is prescribed pursuant to section 8EE of this section, to improve the function of, or to approximate the normal appearance of any abnormal structures caused by congenital disease or anomaly. Coverage under this section shall include the necessary care and treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta. Coverage under this section shall not include cosmetic surgery or dental or orthodontic treatment unrelated to said congenital disease or anomaly. The benefits in this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any other benefit provided by the insurer.

SECTION 5. Chapter 176B of the General Laws is hereby amended by inserting after section 4VV the following section:-

Section 4WW. Any subscription certificate under an individual or group medical service agreement delivered, issued or renewed within the commonwealth shall provide coverage for medically necessary functional repair or restoration of craniofacial disorders; with the exception of coverage for cleft lip and cleft palate, to improve the function of, or to approximate the normal appearance of any abnormal structures caused by congenital disease or anomaly. Coverage under this section shall include the necessary care and treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta. Coverage under this section shall not include cosmetic surgery or dental or orthodontic treatment unrelated to said congenital disease or anomaly. The benefits in this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-pocket limits than any other benefit provided by the insurer.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after section 4NN the following section:-

Section 4OO. Any individual or group health maintenance contract shall provide coverage for medically necessary functional repair or restoration of craniofacial disorders; with the exception of coverage for cleft lip and cleft palate which is prescribed under section 4W of this chapter, to improve the function of, or to approximate the normal appearance of any abnormal structures caused by congenital disease or anomaly. Coverage under this section shall include the necessary care and treatment of ectodermal dysplasia, dentinogenesis imperfecta and amelogenesis imperfecta. Coverage under this section shall not include cosmetic surgery or dental or orthodontic treatment unrelated to said congenital disease or anomaly. The benefits in

77 this section shall not be subject to any greater deductible, coinsurance, copayments or out-of-
78 pocket limits than any other benefit provided by the insurer.

79 SECTION 7. Chapter 176I of the General Laws, as so appearing, is hereby amended by
80 inserting after section 13 the following section:-

81 Section 14 An organization entering into a preferred provider contract shall provide
82 coverage for medically necessary functional repair or restoration of craniofacial disorders; with
83 the exception of coverage for cleft lip and cleft palate which is prescribed under section 12 of
84 this chapter, to improve the function of, or to approximate the normal appearance of any
85 abnormal structures caused by congenital disease or anomaly. Coverage under this section shall
86 include the necessary care and treatment of medically diagnosed congenital disease or anomaly,
87 including, ectodermal dysplasia, dentinogenesis imperfecta, and amelogenesis imperfecta.
88 Coverage under this section shall not include cosmetic surgery or dental or orthodontic treatment
89 unrelated to congenital defects, developmental deformities, trauma, tumors, infections or disease.
90 The benefits in this section shall not be subject to any greater deductible, coinsurance,
91 copayments or out-of-pocket limits than any other benefit provided by the insurer.